

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

April 8, 2013

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez and Ms. Williams. Absent: Ms. Broyles. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of contained [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Brown moved to approve Consent Agenda items, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body present. Mayor Kaysen noted Agenda Item #22(g) is being referred to Committee of the Whole, which will meet to review the item on April 17 at 6:00 p.m. in City Council Chambers.

[CA] Minutes from Regular Meeting of the Governing Body on March 25, 2013. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest in voucher payable to Ameri-Tech HVAC Services) and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Mayor Kaysen opened a public hearing to receive comments and input for the Fiscal Year 2013-2014 Annual Action Plan, City of Cheyenne Community Development Block Grant (CDBG) entitlement. Deanne Widauf, Housing and Community Development Office (H&CD), provided a brief overview of the history and purpose of the CDBG program, noting the City has received entitlement grant funds since 1975. She advised the proposed plan is consistent with the 5 year Comprehensive Consolidated Plan, and stated the anticipated allocation funding amount is \$344,408.00, which is 8% less than last year, and that an additional \$298,086.00 in recaptured and un-appropriated funds will also be utilized (total amount of \$642,494.00). Ms Widauf explained the grant application process; public notifications and opportunities for input, and role of the Advisory Council in reviewing and recommending projects to be funded. She stated 10 projects are proposed for funding for public service projects, general service projects and program administration, and reviewed the projects and funding amounts as recommended by the Advisory Council. Upon inquiry, Rick Parish, Director of Parks and Recreation, provided information on the department's funding request for the Holliday Park ADA accessible restroom project (facility located at 19th and Alexander) which was submitted through the application process with the assistance of the City's Grants Manager. There being no further comments and input, and purpose of the hearing having been met, Mayor Kaysen closed the public hearing.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from A-2, County Agriculture, to AG, Agriculture, for Lot 1, Block 1; Lot 1, Block 2; and Lot 2, Block 2, Plains Industrial Park, and changing the zoning classification from A-2, County Agriculture, to HI, Heavy Industrial, for Lot 3, Block 2, Plains Industrial Park, Cheyenne, Wyoming (located south of I-80, west of Campstool Road). Reporting for Public Services Committee, Mr. Allen moved to approve on third and final reading, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body present. (#3971)

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from MR-1, Medium Density Residential-Established to NR-3, Neighborhood Residential-High Density for the West 44-feet of Lot 4, Block 259, Original City, Cheyenne, Wyoming (located at the southeast corner of 21st Street and Maxwell Avenue) – referred to Public Services Committee (sponsor - Mr. Allen).

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from P, Public, to CBD, Central Business District for the south ½ of Lots 1 and 2, and 16-foot vacated alley, Block 229, Original City, Cheyenne, Wyoming (located west of and adjacent to Pioneer Avenue, between 21st and 22nd Streets) – referred to Public Services Committee (sponsor - Mr. Allen).

ORDINANCE - Vacating portions of Duff Avenue and E. 13th Street adjacent to Blocks 443, 444, 453 and 454, Original City, Cheyenne, Wyoming (located south of E. Lincolnway, west of Alexander Avenue) – referred to Public Services Committee (sponsor - Mr. Allen).

RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Plains Industrial Park, a replat of a portion of HR Ranch Road right-of-way within GDC Subdivision and portions of Section 6, T.13N., R.65W.; Section 1, T.13N., R.66W.; Section 31, T.14N., R.65W.; and Section 36, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming (located south of I-80, west of Campstool Road). Mr. Allen moved to adopt, seconded by Mr. Cook. Mr. Allen moved to amend by substitute to correct a typographical error in the 4th paragraph to change the "dedication of Lot 3, Block 2" to "dedication of Lot 1, Block 2", seconded by Mr. Shanor. Motion to amend carried. Voting "yes" -- all members of the governing body present. Main motion as amended by substitute carried. Voting "yes" -- all members of the governing body present. (#5483)

RESOLUTION - Authorizing an independent professional traffic safety planning study be conducted for the intersection of Pershing Boulevard and Duff Avenue in the City of Cheyenne, Wyoming. Tom Mason, Director, Metropolitan Planning Organization (MPO), recommended the study be facilitated through the MPO, explaining that assignment to the MPO would provide for a more detailed and indepth study involving other neighborhood and community elements, and public involvement. He provided information on the MPO's federal funding cycle and the MPO Policy Committee's involvement in approving projects; expressed his belief that timing of the study is

important relative to current area construction that could affect accuracy of results, and recommended developing the scope of work to be included in the study be done in the summer with hiring of a consultant to conduct the study later to coincide with the MPO budget cycle, contingent upon the Policy Committee's approval, and when construction has been completed in the area. Upon inquiry, Mr. Mason provided information on a grant the MPO received last summer to develop a complete streets policy, which could be included in PlanCheyenne, and noted the policy would address transportation routes for cars, pedestrians and bicyclists. Anne Picot, member, Mayor's Council for People with Disabilities, commented on pedestrian safety concerns at the Pershing/Duff intersection and expressed concerns with postponing the study, stating timely resolution to the issue should be achieved. Lee Filer, state representative, spoke in favor of addressing the matter immediately due to safety concerns. Gregg Crisp, chairman, Mayor's Council for People with Disabilities, advised the Council does not support the resolution in its current state but would support a study by MPO with a complete street policy that would encompass traffic, pedestrians, and businesses located near the intersection. Debbie Massengill, employee of Hoy's Drug, also cited pedestrian safety concerns she has observed at the intersection crossing. Reporting for Finance Committee, Mr. Brown stated there was no recommendation on the item from the Committee. Mr. Allen moved to adopt, seconded by Dr. Rinne. Discussion included the following topics: Support for the MPO to conduct the study, which will provide for a more encompassing study of areas of concern, after construction is completed in the area; addressing the matter properly and efficiently through MPO assistance, and the need to acquire accurate data. Motion to adopt failed. Voting "no" -- all members of the governing body present.

[CA] RESOLUTION - Approving the City of Cheyenne's 2013- 2014 Annual Action Plan prepared by the Cheyenne Housing and Community Development Office -- referred to Finance Committee (sponsors -- Ms. Broyles, Mr. Cook, Dr. Rinne, Mr. Shanor).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Okie Addition, First Filing, a portion of Section 28, T.14N., R.67W., 6th P.M., Cheyenne, Wyoming (located at the northeast corner of E. Pershing Boulevard and Windmill Road, near East High School) -- referred to Public Services Committee (sponsor - Mr. Allen).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Fincher Block, 2nd Filing, a replat of Lots 1 through 12, Block One, Fincher Block, Cheyenne, Wyoming (located between Morrie and Bradley Avenues, and between E. 22nd and 23rd Streets) -- referred to Public Services Committee (sponsor - Mr. Allen).

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2013 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113 -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to execute a State Historic Preservation Office Certified Local Government (CLG) Grant Agreement to update the City's Historic Preservation ordinance -- referred to Finance Committee (sponsors - Mr. Allen and Mr. Brown).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to execute a State Historic Preservation Office Certified Local Government (CLG) Grant Agreement in order to develop a

Downtown Cheyenne Facade Improvement Program – referred to Finance Committee (sponsors - Mr. Allen and Mr. Brown).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to execute a State Historic Preservation Office Certified Local Government (CLG) Grant Agreement in order to fund a Historic Cheyenne Film Contest Project – referred to Finance Committee (sponsors - Mr. Allen and Mr. Brown).

[CA] RESOLUTION - Approving the first quarterly report ending March 31, 2013, of the cumulative funds transferred to the State of Wyoming participating municipalities from the State Small Business Credit Initiative – referred to Finance Committee (sponsor - Mr. Brown).

[CA] Agreement between the City of Cheyenne and RBC Global Asset Management (U.S.) Inc. to provide Investment Advisory Services. Motion (per Consent Agenda) carried. (#5977)

[CA] Professional Services Agreement between the City of Cheyenne, Parks and Recreation Department, and Cheyenne Youth Baseball League for the provision of concession services at the Dutcher Baseball Complex Concession and Restroom Facility. Motion (per Consent Agenda) carried. (#5978)

[CA] Professional Services Agreement between the City of Cheyenne, Parks and Recreation Department, and Cheyenne Junior League Baseball for the provision of concession services at the Cheyenne Junior League Baseball Complex Concession and Restroom Facility. Motion (per Consent Agenda) carried. (#5979)

[CA] Use Agreement between the City of Cheyenne and Warren Federal Credit Union to permit limited use of the public right-of-way for the installation of fiber optics, and setting a fee. Motion (per Consent Agenda) carried (\$750.00 revenue to City for 5 year agreement). (#5980)

[CA] Hunter Management Agreement between the City of Cheyenne, Public Works Department, and the State of Wyoming, Game and Fish Department, for the Lone Tree Hunter Management Area on the Belvoir Ranch. Motion (per Consent Agenda) carried (approximate annual revenue to City of \$2,268.00). (#5981)

[CA] Contract between the City of Cheyenne, Youth Alternatives, and Laramie County Community Partnership, Inc., for academic and enrichment activities for at-risk school-age youth at Carey Junior High School (21st Century Community Learning Centers Cohort Five grant funds). Motion (per Consent Agenda) carried. (#5982)

[CA] Real Estate Purchase Agreement between W. E. Dinneen, Inc., and the City of Cheyenne, for the City's purchase of various parcels of real property generally located within Block 353, Original City, between Pioneer and Thomes Avenues and between 17th and 18th Streets, Cheyenne, Wyoming, commonly known as 405 West 18th Street, 1704 Pioneer Avenue, 410 West 17th Street, and 416 West 17th Street, which are owned by W.E. Dinneen, Inc. (1% Specific Purpose Sales & Use Tax) – referred to Committee of the Whole.

[CA] Agreement between the City of Cheyenne, Police Department, and Laramie County Sheriff's

Department and Laramie County, Wyoming, for housing City prisoners at the Laramie County Detention Center – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, Transit Division, and Laramie County, Wyoming, to provide public transportation services to Laramie County Community College, City/County Health Department, and an area of Laramie County adjacent to the City – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Boys and Girls Club of Cheyenne, Inc., for lease of City-owned real property located at 1700 Snyder Avenue, Cheyenne, Wyoming – referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Noel Griffith Jr. & Associates Architects for design of Household Hazardous Waste Facility (SLIB Grant funding) – referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5922 between the City of Cheyenne, Parks and Recreation Department, and Simon Contractors, Inc., Cheyenne, Wyoming, to increase the quantity of structural concrete retaining and wingwalls for the Cheyenne Greenway Walterscheid Underpass Project (1% Specific Purpose Sales and Use Tax, Miscellaneous Federal grants). Motion (per Consent Agenda) carried (amount not to exceed \$91,000.00). (#5922)

[CA] Contract Modification No. 1 to Contract No. 5968 between the City of Cheyenne and Cheyenne Umpires Association to provide umpire services for the 2013, 2014 and 2015 Softball Seasons (softball registration revenue) – referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5737 between the City of Cheyenne, Engineering Department, and 360networks (USA) inc., to add additional fiber optics in the public right-of-way (revenue to City) – referred to Finance Committee.

[CA] Consideration of Bid #R-24-13 for furnishing and installing playground systems for JL Ranch Park from Great Western Park and Playground, Wellsville, Utah, for the Parks and Recreation Department (Community Facility fees). Motion (per Consent Agenda) carried (amount not to exceed \$42,852.20).

[CA] Consideration of Bid #M-10-13 for a contract for the Snyder Avenue Reconstruction project between the City of Cheyenne, Engineering Department, and Simon Contractors, Cheyenne, Wyoming (2003-2006, 2007-2010, 2011- 2014 1 % Sales Tax) – referred to Finance Committee.

Announcement was made of the appointment of Robert G. Geringer as City Engineer, to be confirmed April 22, 2013.

Announcement was made of the appointment of Michael J. Sorenson to the Laramie County Community Juvenile Services Joint Powers Board, to be confirmed April 22, 2013.

Announcement was made of a Public Hearing to be held April 22, 2013 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to determine whether compliance of

annexation conditions required by Wyo. Stat. §15-1-402 exist for a parcel land being situated in portions of Sections 14, 15, 22, 23, 27, Township 13 North, Range 67 West of the 6th p.m., Laramie County, Wyoming, to be known as the Swan Ranch II Annexation (located northwest of the intersection of Clear Creek Parkway and Tundra Drive).

Under other business:

Pete Laybourn thanked Council members for supporting the traffic study to be conducted at the intersection of Pershing Blvd. and Duff Avenue. He expressed concerns with the “failure” of concrete at the intersection as well as other locations within the City, and requested Council members be diligent in having good quality concrete for street, curb and gutter projects.

Lee Filer, state legislative representative, expressed concerns on the following issues: Repair costs of a sewer line incurred by a constituent and City vs. homeowner’s area of responsibility; sanitation fee assessments involving 40 tenants in the Majestic apartment building; mandatory residential recycling bin fee; deterioration of curbs, gutters and sidewalks in certain neighborhoods, specifically citing an area near Walterscheid and Fox Farm; small business owner concerns relating to communication of information by Building, Planning and Fire Departments involving zoning, development, licensing and inspections, and need for flashing lights and crosswalks, in addition to current signage, near certain elementary schools for student crossing safety. During queries raised by Representative Filer throughout his statements, Mayor Kaysen offered to meet with the constituent and City staff relative to the sewer line topic; and Jim Elias, Public Works Director, and Nathan Beauheim, Acting City Engineer, provided information available involving the topics of sanitation and recycling fees, and schedule of certain street repairs/renovation projects. Comments made by some Council members regarded a suggested area that should be reviewed for street repairs or reconstruction and flashing lights/crosswalk designations at certain schools; residential responsibility involving sewer lines, and level of state funding assistance to municipalities.

Upon inquiry regarding street sweeping operations sometimes occurring the same day as trash receptacles are placed in the street for sanitation pick-up, Mr. Elias advised at times scheduling is difficult to re-arrange for coordination of spring clean-up and that routes and times change, but they do try to stagger the schedule to avoid overlapping of operations.

There being no other business raised by the public and City Council members, Dan White, City Attorney, requested the governing body meet in executive session, pursuant to provisions of Wyo. Stat. 16-4-404 (a) (iii) and (ix), to receive legal advice on two different matters -- potential settlement of a claim asserted against the City which, in the absence of a settlement, could result in litigation against the City, and potential need for the City to initiate litigation processes in another matter involving applicable provisions of state law. Dr. Rinne moved to meet in executive session, seconded by Mr. Brown. Motion carried. Voting “yes” -- all members of the governing body present. Mayor Kaysen announced members would meet in executive session in Council Chambers, not open to the public; requested the City Attorney, City Clerk, and others as requested by the City Attorney, be present at the executive session, and stated there would be no action taken by the governing body as a result of the executive session, and that the regular City Council meeting would officially conclude at the close of the executive session. (City Clerk Note: Following a brief recess, executive session convened at 7:28 p.m.)

The meeting was officially adjourned at 8:11 p.m. following conclusion of the executive session.

Submitted by,



Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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